

STATE OF NEW YORK

10460--B

IN ASSEMBLY

March 6, 2026

Introduced by M. of A. LEE, SHIMSKY, ROZIC -- read once and referred to the Committee on Governmental Operations -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the executive law, in relation to enacting the "ICE contract transparency act"

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "ICE contract transparency act".

3 § 2. The executive law is amended by adding a new section 94-c to read
4 as follows:

5 § 94-c. Database for contracts with federal immigration enforcement.

6 1. For the purposes of this section, the term "entity" shall mean any
7 person, business, or other legal entity that operates or conducts busi-
8 ness in the state of New York.

9 2. Any entity that enters into a contract or other agreement with
10 United States immigration and customs enforcement beginning on or after
11 January first, two thousand twenty-five, for purposes including but not
12 limited to, the leasing or operation of immigration detention facili-
13 ties, office facilities, parking facilities or other related services,
14 shall file a copy of such contract or other agreement with the depart-
15 ment of state within thirty days of executing such contract or other
16 agreement. Any such contract or other agreement entered into on or
17 after January first, two thousand twenty-five and prior to the effective
18 date of this section shall be filed with the department of state within
19 thirty days of such effective date.

20 3. The department of state shall maintain and publish a publicly
21 accessible database of contracts or other agreements filed with the
22 department of state pursuant to subdivision two of this section. The
23 department of state shall promptly post on the database all such filed
24 contracts or other agreements. Such database shall include but not be
25 limited to:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (a) the name of the entity;
2 (b) the location of the entity receiving the contract and the primary
3 location of performance under the contract;
4 (c) information on the nature of the contract; and
5 (d) any other relevant information specified by the department of
6 state.

7 4. The department of state may impose a civil penalty of up to five
8 thousand dollars upon any entity who fails to file a contract or other
9 agreement required by this section. In addition to such civil penalty,
10 the department of state is authorized to determine that any entity in
11 violation of this section is a non-responsible entity and to place such
12 entity on the debarred and non-responsible entities list maintained
13 pursuant to state law, thereby disqualifying such entity from receiving
14 any state contract or award. Any entity so listed shall remain on such
15 list for a period of five years or until such entity has filed the
16 required contract or agreement with the department of state, whichever
17 occurs first.

18 § 3. This act shall take effect on the ninetieth day after it shall
19 have become a law.